

		provides information to consumers on how they can apply to the BBB Auto Line program. None of this verbiage indicates that consumers are required to resort to the dispute resolution process before filing a civil suit. Considering all the above, the Motion as to the seventh cause of action is DENIED. Moving party to give notice.
110	Arevalo vs. Clinton 21-01216715	Motion to Enforce Settlement Defendants Richard Arthur Clinton and Helen Clinton (“Defendants” or the “Clintons”) move for an order enforcing a settlement agreement with plaintiff Diane Arevalo Teets (“Plaintiff” or “Ms. Arevalo”) and entering judgment thereon. Defendants’ evidentiary objections to the Declaration of Charlene J. Wynder are OVERRULED. On November 14, 2024, the parties participated in a MSC before Temporary Judge G. Emmett Raitt, Jr. The minute order reads in relevant part: “Settlement conference held. Case is settled.” Counsel for the Clintons, Dina A. Ariza, asserts that she attended the MSC and the parties agreed to the following terms: Ms. Arevalo would be compensated \$45,000 in exchange for a grant of easement in favor of the Clintons for the purpose of maintenance, repair and/or replacement of the utilities, air conditioning unit, etc. and that side of the Clintons’ home where those utilities are located; the parties would do what was necessary to achieve the subordination of that deed of trust encumbering Ms. Arevalo’s property affected by the easement; and each party would bear their own attorney’s fees and costs and mutual general releases would be exchanged. (Declaration of Dina A. Ariza ¶ 3.) On November 15, 2024, the primary terms of the settlement were emailed from Ms. Ariza’s co-counsel to Charlene Wynder, counsel for Ms. Arevalo. (Id. ¶ 4.)

		That correspondence confirms the above terms. (Id., Exhibit 1.) On April 11, 2025, Ms. Ariza sent drafts of a settlement agreement, memorandum of agreement, and grant of easement to Ms. Wynder by email and asked how they should proceed with obtaining the subordination agreement from Ms. Arevalo’s lender. (Id. ¶¶ 7-8.) Ms. Wynder replied stating that Ms. Arevalo had already submitted paperwork to her lender authorizing Ms. Ariza to speak with them about the subordination agreement. (Id. ¶ 9.) The third-party authorization signed by Ms. Arevalo was provided on April 29. (Id. ¶ 11.) From April through December, Ms. Ariza followed up with Ms. Wynder regarding review of the settlement documents. On December 3, 2025, Ms. Wynder provided her proposed revisions. (Id. ¶ 22.) After the parties were unable to reach an agreement over the proposed revisions, this motion followed. Ms. Wynder’s declaration in opposition asserts that the parties agreed to a settlement in principle but that was subject to final negotiation of the settlement agreement. Ms. Wynder states that the full details of the easement had yet to be negotiated and Ms. Arevalo always had concerns about Mrs. Clinton harassing her family and wanted to ensure that the settlement agreement included terms preventing such harassment. The parties dispute whether the November 14, 2024, MSC was “before the court” for purposes of section 664.6. The minute order lists G. Emmett Raitt, Jr., as the temporary judge. “The position of temporary judge is authorized expressly by article Vi, section 21, of the California Constitution[.]” (In re Marriage of Assemi (1994) 7 Cal.4th 896, 907.) Further, the parties must have stipulated Mr. Raitt’s serving as a temporary judge, as stipulation to a temporary judge is required. (See <i>ibid.</i>) If the parties had not stipulated Mr. Raitt serving as a temporary judge, the MSC would have been continued. “Once a temporary judge has taken an oath of office, he or she has the same authority as a
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	regular judge. . .” (Id. at p. 908.) Where one’s role is “closely analogous to that of a judge, in a judicial proceeding, empowered to exercise what are essentially judicial functions”, the “before the court” requirement will be satisfied. (See id. at p. 909 [holding that because Judge Meyers’s role was closely analogous to that of a judge, the “before the court” requirement was satisfied].) Here, Mr. Raitt was serving in a role that was analogous to that of a judge, upon stipulation of the parties, in a judicial proceeding. Thus, the settlement was made orally before the Court for purposes of section 664.6. Ms. Arevalo’s counsel asserts that an oral stipulation could not have been made on Ms. Arevalo’s part because Ms. Arevalo was unable to speak at the time of the MSC, due to a stroke. However, “section 664.6 does not require that the parties themselves orally stipulate and instead allows counsel for the parties to orally stipulate on their behalf.” (Greisman v. FCA US, LLC (2024) 103 Cal.App.5th 1310, 1326.) Ms. Arevalo as well as her counsel were presented at November 14, 2024, MSC and, notably, Ms. Wynder does not state that she did not stipulate the terms of the settlement on Ms. Arevalo’s behalf. The evidence above shows that the parties orally stipulated to specific terms of the settlement: Ms. Arevalo would be compensated \$45,000 in exchange for a grant of easement in favor of the Clintons for the purpose of maintenance, repair and/or replacement of the utilities, air conditioning unit, etc. and that side of the Clintons’ home where those utilities are located; the parties would do what was necessary to achieve the subordination of that deed of trust encumbering Arevalo’s property affected by the easement; and each party would bear their own attorney’s fees and costs and mutual general releases would be exchanged. The correspondence between counsel shortly after the MSC discloses that Ms. Wynder understood that these terms accurately reflected the settlement reached by the
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		parties. There is no indication that any essential element of the parties' agreement was reserved for future agreement or further negotiation. Ms. Arevalo argues that the stipulation was not enforceable because numerous terms were outstanding, such as a survey, consent by the mortgage holder, a subordination agreement, and the specific terms and conditions of the easement. Ms. Arevalo argues that it is clear that material terms were still subject to negotiation. However, this argument is not persuasive. The evidence shows that the parties agreed to do what was necessary to achieve subordination of the deed of trust encumbering Ms. Arevalo's property and that the Clintons would be granted an easement for purposes of maintenance and repair. Those terms are sufficiently definite. The fact that the written instruments were not yet reduced in writing does not render the settlement agreement unenforceable or lacking in definite terms. (See Blix Street Records, Inc. v. Cassidy (2010) 191 Cal.App.4th 39, 48 ["When parties intend that an agreement be binding, the fact that a more formal agreement must be prepared and executed does not alter the validity of the agreement."].) Further, any survey and consent by the mortgage holder would be in furtherance of the parties' agreement for an easement and subordination of the deed of trust, rather than additional terms that require further negotiation. Considering all the above, Defendants' Motion pursuant to Code of Civil Procedure section 664.6 is GRANTED. Defendants to submit a proposed judgment within 15 days. Moving party to give notice.
111	Bian vs. Latreill 21-01390510	Anti SLAPP Motion